

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

QUENTON FRAZIER,

Plaintiff designates Bronx County
as the place of trial

Plaintiff,

Basis of venue is
county of occurrence

-against-

THE CITY OF NEW YORK and
NYPD OFFICER ADALBERTO MATOSFELIZ,

SUMMONS

Defendants.

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To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 29, 2022

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: c/o NYC Corp. Counsel, 100 Church St., New York, NY 10006

NYPD Officer Adalberto Matosfeliz: c/o NYPD PSA 7, 737 Melrose, Ave., Bronx, NY 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
QUENTON FRAZIER,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD OFFICER ADALBERTO MATOSFELIZ,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Bronx, City and State of New York.
2. That at all times herein mentioned, plaintiff was employed as a Community Liaison with Guns Down Life Up (GDLU), a not-for-profit, anti-violence organization.
3. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
5. That at all times herein mentioned, defendant NYPD Officer Adalberto Matosfeliz (Matosfeliz) was and is a police officer employed by the NYPD.
6. That at all times herein mentioned, Matosfeliz was acting within the course

and scope of his employment with the NYPD.

7. That at all times herein mentioned, Matosfeliz was acting under color of state law.

8. That prior to the institution of this action, and within ninety days of the accrual of the causes of action herein, a notice of claim and intention to sue was duly served upon and filed with defendants; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon; and this action is being commenced within one year and ninety days after the causes of action accrued herein.

THE FACTS

9. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

10. That on or about May 12, 2022, NYPD officers and officials, including but not limited to Matosfeliz (hereinafter referred to collectively as “the officers”), responded to a location at or around 315 East 143rd Street, Bronx, NY (hereinafter “the location”).

11. That some time after they arrived at the location, the officers engaged in a verbal argument with pedestrians regarding, among other things, orders given by the officers to the pedestrians to leave the location.

12. That during the course of this argument, plaintiff attempted to act as a liaison between the officers and the pedestrians in order to amicably resolve the argument.

13. That at some point while acting as liaison, plaintiff verbally expressed his disapproval toward the officers regarding the manner in which they were handling the situation.

14. That plaintiff’s verbal expression of disapproval was a valid and legitimate

exercise of his First Amendment rights to free speech and to petition the government for redress of grievances.

15. That in response to plaintiff's verbal expression of disapproval, the officers used force against plaintiff that was excessive, unnecessary, and unjustified.

16. That the use of force included, but was not limited to, forcibly seizing plaintiff and pushing him against a fence, and then pushing plaintiff toward a police vehicle, slamming plaintiff's head into the hood of the vehicle, forcibly shoving an elbow into plaintiff's back, forcibly twisting plaintiff's wrists, and placing plaintiff tightly in handcuffs.

17. That the officers thereafter arrested plaintiff without a warrant and without probable cause to believe that plaintiff had committed or was about to commit any crime, and caused plaintiff to be imprisoned at various locations, including inside a police vehicle and a police precinct.

18. That thereafter, the NYPD, by and through its agents, servants and/or employees, including Matosfeliz, initiated a prosecution of plaintiff by charging plaintiff with disorderly conduct.

19. That in support of the prosecution, Matosfeliz authored and signed a Criminal Court Appearance Ticket charging plaintiff with disorderly conduct.

20. That neither Matosfeliz nor any other members of the NYPD had probable cause to believe that plaintiff was guilty of the crime with which he was charged, or indeed of any other crime.

21. That in further support of the prosecution of plaintiff, Matosfeliz made statements about plaintiff to fellow officers and to the District Attorney that Matosfeliz knew to be false.

22. That among the knowingly false statements that Matosfeliz made were that a) plaintiff became very hostile; b) plaintiff took a fighting stance with police; and c) plaintiff obstructed vehicular and/or pedestrian traffic.

23. That these false statements made by Matosfeliz constituted material evidence in the prosecution of plaintiff, and evidence that would likely convince a judge and/or jury that plaintiff was guilty of disorderly conduct.

24. That these false statements made by Matosfeliz caused plaintiff to be deprived of his liberty, in that plaintiff was required to appear in court on multiple occasions to answer the charges against him and was restricted in his travel.

25. That the actions of Matos and the other NYPD officers were intentional and malicious in nature.

26. That the actions of Matos and the other NYPD officers were undertaken in retaliation for plaintiff's legitimate exercise of his First Amendment rights.

27. That at all times referenced herein, Matosfeliz and the officers observed the illegal and unconstitutional conduct of their fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, and deliberately and intentionally failed and refused to do so.

28. That on or about July 15, 2022, the criminal charge against plaintiff was dismissed on the merits and the criminal prosecution terminated favorably to plaintiff.

29. That as a result of the actions of defendants herein, plaintiff suffered significant emotional and physical injuries, including but not limited to injuries to his wrist and back, and incurred medical and other expenses.

30. That as a further result of the actions of defendants herein, and in particular

defendants' arrest and prosecution of plaintiff, plaintiff lost his position with GDLU and became unemployed, thereby sustaining a significant loss of income.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of Matosfeliz and the officers constituted an assault and battery upon plaintiff, for which Matosfeliz and the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment Under NY State Law)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforementioned actions of Matosfeliz and the officers constituted a false arrest and a false imprisonment of plaintiff, for which Matosfeliz and the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforementioned actions of Matosfeliz and the officers constituted a malicious prosecution of plaintiff, for which Matosfeliz and the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST MATOSFELIZ
(42 USC § 1983 Claim Arising from Fourth & Fourteenth Amendment Violations)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforementioned actions of Matosfeliz in assaulting and battering, falsely arresting and imprisoning, and maliciously prosecuting plaintiff constituted illegal seizures of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST MATOSFELIZ
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid actions by Matosfeliz constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST MATOSFELIZ
(42 USC § 1983 Claim Arising from First Amendment Violations)

41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforesaid actions by Matosfeliz constitute a denial of plaintiff's right of free speech and his right to petition the government for redress of grievances, in violation of plaintiff's rights under the First Amendment to the United States Constitution, and entitle

plaintiff to recover damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST MATOSFELIZ
(42 USC § 1983 Claim Arising from Failure to Intervene)

43. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

44. That the aforementioned actions of Matosfeliz in failing to intervene to prevent and/or stop the illegal conduct of his fellow officers constituted a violation of rights guaranteed to plaintiff under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against Matosfeliz, and attorney's fees against Matosfeliz pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
September 29, 2022

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
September 29, 2022

Edward Sivin

EDWARD SIVIN